SNOWPLOWING CONTRACT

(Completed by Agent's District Manager with Service Provider)

OWNER: Storage King USA ("Agent"), solely in its capacity as agent for the record owner of the store ("Owner").	**SERVICE PROVIDER:**

STORE NAME: **STORE NUMBER**:

CONTRACT TERM: ☐ _____months beginning on_____, 20 and expiring on_____, 20___. Owner may terminate this Contract at any time upon 30 days prior written notice to Service Provider.

☐ One time service to occur on _____, 20___.

SERVICE DESCRIPTION

- Snowplowing in areas designated by Agent or Owner upon accumulation of 4" or more of snow, and continuing, one or more times, in accordance with generally acceptable industry standards to allow the store to safely open and operate business from 9:00 am – 6:00 pm Monday through Saturday (or during such other normal business hours of the store) ("Business Hours").
- Hand-shoveling all emergency doors.
- Apply sand or calcium chloride ("De-Icer"), one or more times, in accordance with generally acceptable industry standards to allow the store to safely open and operate during Business Hours; provided, however, that, if such application is identified as an additional fee per applicable in the Fees section below, then Service Provider shall obtain the General Manager's approval prior to performing such application. Notwithstanding the foregoing, if Service Provider discovers slippery or dangerous conditions (in Service Provider's reasonable discretion) during non-Business Hours or otherwise when the office at the store is closed, and the General Manager for the store is unavailable, then Service Provider may apply sand or calcium chloride without prior approval and notify Owner immediately thereafter.
- Place snow markers at all fire hydrants, sidewalks, abutments, driveways, etc. that are located in snowplowing path.
- The following additional services **ONLY** if box is checked:
  - ☐ Shoveling sidewalks at reasonable intervals pursuant to generally acceptable industry standards
  - ☐ Hand-shoveling around property at reasonable intervals pursuant to generally acceptable industry standards
  - ☐ Other (*specify and add fee in "FEE" section where indicated below*)_____
- The services described above are collectively referred to as the "Services" in this Contract.

FEES

TOTAL FEES PER ACCUMULATION* – BASIC SERVICES		**TOTAL FEES PER ACCUMULATION* - ADDITIONAL SERVICES**				**Grand Total per Accumulation***
Snow Accumulation:	**Fees**	**Shoveling Sidewalks****	**Hand-Shoveling Property****	**Other** (Describe):**	**Other** (Describe):**	
4" - 8"	$_____	$_____	$_____	$_____	$_____	$_____
9" – 13"	$_____	$_____	$_____	$_____	$_____	$_____
14" – 18"	$_____	$_____	$_____	$_____	$_____	$_____
19" – 23"	$_____	$_____	$_____	$_____	$_____	$_____
24" – 28"	$_____	$_____	$_____	$_____	$_____	$_____
29" –33"	$_____	$_____	$_____	$_____	$_____	$_____
34" – 38"	$_____	$_____	$_____	$_____	$_____	$_____
39" – 43"	$_____	$_____	$_____	$_____	$_____	$_____
44" – 48"	$_____	$_____	$_____	$_____	$_____	$_____
Each Additional inch	$_____	$_____	$_____	$_____	$_____	$_____

Check One:

☐ Application of De-Icer as described above is included in Total Fees per Accumulation

☐ Application of De-Icer is $ _____ per application

****Total fee for entire accumulation amount regardless of number of times plowed, type of equipment used (including, without limitation, heavy machinery) and/or any other services performed.***

***Service to be provided and fee to be paid **ONLY** if corresponding box in Service Description section is checked.*

SEE PAGE 2 FOR ADDITIONAL TERMS

ADDITIONAL TERMS

- Service Provider shall obtain keys and/or gate codes from Agent or Owner in advance of any Services to allow Service Provider to access the store to perform the Services.
- **SERVICE PROVIDER WILL NOT PERFORM ANY SERVICES THAT ARE NOT LISTED ABOVE WITHOUT AGENT'S OR OWNER'S PRIOR WRITTEN APPROVAL.**
- **SERVICE PROVIDER MUST OBTAIN DISTRICT MANAGER'S PRIOR WRITTEN APPROVAL TO USE ANY HEAVY MACHINERY AT THE STORE; BUT THE (PER INCH) FEES ABOVE INCLUDE THE COST OF ANY HEAVY MACHINERY THAT MAY BE DESIRED AND/OR REQUIRED BY SERVICE PROVIDER TO COMPLETE THE SERVICES. SERVICE PROVIDER UNDERSTANDS AND AGREES THAT THIS CONTRACT INCLUDES ALL FEES TO COMPLETE THE SERVICES DURING THE CONTRACT TERM REGARDLESS OF THE AMOUNT OF SNOW AND/OR ICE AND REGARDLESS OF THE TYPE OF EQUIPMENT REQUIRED TO PERFORM THE SERVICES INCLUDING, WITHOUT LIMITATION, ANY HEAVY MACHINERY. IT SHALL BE DEEMED TO BE A MATERIAL BREACH OF THIS CONTRACT BY SERVICE PROVIDER IF SERVICE PROVIDER REFUSES TO PERFORM THE SERVICES AND/OR ATTEMPTS TO CHARGE FEES FOR THE SERVICES IN ADDITION TO THE FEES DESCRIBED ABOVE INCLUDING, WITHOUT LIMITATION, ANY SUCH FEES FOR HEAVY MACHINERY, AND OWNER SHALL HAVE THE RIGHT TO EXERCISE ANY AND ALL REMEDIES AVAILABLE TO OWNER UNDER THIS CONTRACT, AT LAW, OR IN EQUITY INCLUDING, WITHOUT LIMITATION, HOLDING SERVICE PROVIDER LIABLE FOR CONSEQUENTIAL DAMAGES.**
- **SERVICE PROVIDER WILL NOT PILE SNOW AGAINST ANY FENCE OR BUILDING AT THE STORE.**
- In consideration for the Fees described above, Service Provider will perform the Services at the store subject to the terms of this Contract. All work performed is to be completed in a clean, neat, and professional manner consistent with industry standards for services of a similar nature, and in accordance with all applicable laws, codes, and regulations. Service Provider shall not use any subcontractor's to perform any Services hereunder unless Service Provider obtains Owner's prior written approval which may be withheld in Owner's sole discretion.
- Service Provider will, within 30 days after Owner's written request, repair and/or replace, to the reasonable satisfaction of Owner, any damage to the store caused by Service Provider. If Service Provider fails to so repair and/or replace such damage, Owner may (in addition to any other remedies under this Contract, at law, or in equity) do so at Service Provider's cost which will be payable by Service Provider to Owner upon demand.
- Service Provider must obtain and maintain, during the Contract Term, the insurance described on Owner's Insurance Requirements Form which is incorporated into and made a part of this Contract. Prior to performing any work at the store, Service Provider shall deliver to Owner a Certificate of Insurance evidencing the insurance, including the additional insured endorsement, in Owner's Insurance Requirements Form.
- Service Provider will indemnify, defend, and hold harmless Owner, CubeSmart, CubeSmart, L.P., CubeSmart Asset Management, LLC, and each of their respective directors, officers, teammates, lenders, successors, and assigns (collectively, the "Owner Parties") from any and all claims, losses, costs, injuries, damages, liabilities, liens, actions, and causes of action of any kind (including court costs and reasonable attorneys' fees) arising out of or in connection with any act, omission, or negligence of Service Provider or any of its teammates, agents, invitees, and/or subcontractors.
- Service Provider will be responsible for any and all costs and expenses (including reasonable attorneys' fees and court costs) incurred by Owner to enforce the terms of this Contract.
- In addition to any other remedies under this Contract, at law, or in equity, each party hereto shall have the right to terminate this Contract if the other party fails to cure a default or breach hereunder within 10 days after receipt of written notice thereof.
- This Contract, including the Insurance Requirements Form, is the entire agreement of the parties and there were no verbal representations, warranties, understandings, agreements or promises pertaining to the subject matter of this Contract or the Insurance Requirements Form that are not incorporated in writing in this Contract.
- This Contract may not be altered, waived, or amended except by a written instrument signed by each party hereto.
- All payment, repair, replacement, and indemnity obligations in this Contract will survive the expiration or termination of this Contract, except **all Fees invoices must be tendered to Owner within sixty (60) days after completion of the Services, after which such Fee invoices will no longer be honored**.
- Service Provider may not assign this Contract without Owner's prior written consent which may be withheld in Owner's discretion. Owner may assign this Contract, at any time, to Owner's successor or nominee by giving Service Provider written notice thereof.
- Agent is entering into this Contract solely in its capacity as duly authorized agent for Owner. Nothing contained herein shall be construed as creating any liability of Agent for any obligation in any capacity other than as the duly authorized agent of Owner.
- The individuals signing this Contract on behalf of Service Provider and Owner represent and warrant that they are duly authorized to enter into this Agreement and to bind Service Provider and Owner, respectively, and that this Contract, when duly executed and delivered by the parties hereto, will constitute the valid and legally binding obligation of the parties hereto and will be enforceable against such parties in accordance with its terms.
- In any construction of the terms of this Contract, the same shall not be construed against either party on the basis of that

Service Provider Signature:	Date:
Owner Signature (by the District Manager of Agent, solely in its capacity as duly authorized agent for Owner):	Date: